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CASE #	CASE NAME	HEARING NAME
CVRI2604778	VINKOV vs CHRISTI BARRETT IN HER OFFICIAL CAPACITY AS THE CLERK OF THE GOVERNING BOARD OF THE HEMET UNIFIED SCHOOL DISTRICT	HEARING ON PEREMPTORY WRIT OF MANDATE

Tentative Ruling:

GRANT, in part.

Petitioner brings this challenge to the proposed ballot statement and title for Hemet Unified School District's Measure I ("Hemet Unified School District No-Tax-Rate-Increase School Repair, Improvement, Health and Safety Measure"), alleging that the Measure violates Elections Code § 13119(c), to wit "The statement of the measure shall be a true and impartial synopsis of the purpose of the proposed measure, and shall be language that is neither argumentative nor likely to create prejudice for or against the measure." Petitioner contends that the use of the phrase "no-tax-rate-increase" used in the title and the body of the summary violates Elections Code § 13119(c).

The ballot language at issue is as follows:

Hemet Unified School District No-Tax-Rate-Increase School Repair, Improvement, Health and Safety Measure. To repair and upgrade aging classrooms, science labs, career technology and school facilities to support college/ career readiness in math, science, technology, arts, engineering, skilled trades; fix deteriorating roofs, plumbing, electrical systems; and improve school safety, security, air conditioning systems; shall Hemet Unified School District's no-tax-rate-increase measure be adopted authorizing \$225,000,000 in bonds at legal rates, levying approximately \$50 per \$100,000 assessed value (\$16,000,000 annually) while bonds are outstanding, with citizen oversight and independent audits?

Based on the language in the full text of the bond measure and Respondent's declaration, District intends to structure the bond so that the projected tax rate necessary to pay off outstanding bonds will not exceed the rate levied in fiscal year 2025-2026. In the full text of the bond measure, it provides:

The District is required by law to make its best estimates of the ad valorem property tax rate required to be levied on all taxable property in the District to pay debt service on the proposed bonds. These estimates and the factors that might cause the tax rate to vary from these estimates in the future are described in the tax information statement that the County Registrar of

Voters is required to print in the voter information guide to be distributed to voters in connection with the election. It is the District's current plan to structure the proposed bonds so that the tax rate necessary to pay debt service on those bonds, when combined with the tax rate necessary to pay debt service on currently outstanding bonds in each year, will not exceed the rate levied in fiscal year 2025-26 to pay debt service on the currently outstanding bonds alone.

Respondent admits in its opposition that the bond makes no promises that the tax rate will not increase. She states: "the measure makes no promises that the tax rate will not increase. Rather, the full text explains that the District intends to structure the bond so that the combined rate will not exceed the current rate based on the District's projections, and it explains the District's assumptions underlying that plan." (Respondent and Real Parties in Interest's Opposition to Verified Petition, 8:12-15.)

As currently written, the ballot summary specifically states the bond will not increase the tax rate past the 2025-2026 rate. This language is misleading. As Respondent concedes in her opposition, the bond measure does not promise that the tax rate will not increase; only that it is the District's intention to structure the bond so that the combined rate will not exceed the current rate. However, based on the exhibits to the District's resolution (Ex. B to the District's Resolution No. 4183), the District's "best estimate of the highest tax rate that would be required to be levied to fund this bond...is \$60 per \$100,000 of assessed value..." This is greater than the rate stated in the summary ("approximately \$50 per \$100,000 assessed value"). The use of the phrase "no-tax-rate-increase" is misleading because it does not inform the voter that the tax rate could increase.

Additionally, Education Code § 15122 requires "that the maximum rate of interest" of the bond be identified in the ballot summary, not the "expected tax rate". The ballot summary here provides that the levied rate will be "approximately \$50 per \$100,000 assessed value". This is not the maximum rate of interest for the bond.

The Court GRANTS the petition, in part, and Orders that the phrase "No-Tax-Rate-Increase" be stricken from the title and the body of the ballot statement of the measure, that the rate should be changed from \$50 per \$100,000 to \$60 per \$100,000 assessed value, and that the total annual assessment be recalculated.

Petitioner's remaining objections to the ballot language have no merit. The inclusion of Measure X on the ballot is not required by any statute or law. As Respondent points out, Education Code § 5322 limits the District to 75 words in the proposed ballot language. The court finds nothing inconsistent or improper with the Interpretation Provision or the Severability Clause of the proposed bond. The proposed ballot title and language are not unconstitutional. There is no violation of the single-subject rule because the bond and the waiver of the bond cap are both part of the same common underlying purpose or scheme to allow the District to obtain the bond. Moreover, Article II § 8(d) of the California Constitution pertains to initiatives. Measure I is not an initiative.

The court suggests the following amended proposed ballot language and title:

Hemet Unified School District School Repair, Improvement, Health and Safety Measure. To repair and upgrade aging classrooms, science labs, career technology and school facilities to support college/ career readiness in math, science, technology, arts, engineering, skilled trades; fix deteriorating roofs, plumbing, electrical systems; and improve school safety, security, air conditioning systems; shall Hemet Unified School District's measure be adopted authorizing \$225,000,000 in bonds at legal rates, levying no more than \$60 per \$100,000 assessed value (\$ *TBD* annually) while bonds are outstanding, with citizen oversight and independent audits?